RTB Bord um Thionóntachtaí Cónaithe
Residential Tenancies Board

Application for Dispute Resolution Services

Making a dispute resolution application to the RTB

The Residential Tenancies Board (RTB) offers a low-cost service to resolve tenancy disputes. It is available to landlords, tenants and affected third parties, for example, a neighbour.

When we receive your application:

- We will check that it meets some basic requirements for your case to proceed.
- We may also contact you to provide information on rental law and your dispute resolution options.

All applications start as mediation cases. If you feel mediation will not resolve your issue, you can change to an adjudication hearing by informing your case officer and paying the €30 fee.

Differences between mediation and adjudication

Mediation

Our free mediation service helps to reach a legally binding agreement that everyone is happy with. It is a fast and effective phone-based service. We encourage mediation as the best way to resolve disputes. Our mediators talk to both parties separately to learn about the situation, the parties do not speak directly to each other. The mediator explains everyone's rights and legal obligations. They work to get a solution everyone agrees with.

The agreement details are confidential and are not published on the RTB website.

Adjudication

Adjudication is a more formal process than mediation. An independent adjudicator reviews the evidence submitted by both parties. The adjudicator decides the outcome of the dispute based on the evidence presented at a hearing and rental law. The decision is legally binding. This service costs €30 and takes more time than mediation.

An adjudication is a public hearing. This means a member of the public can attend without your permission. We publish adjudication hearing reports and Determination Orders on the RTB website.



How to complete this application form

To complete this application form, please write with a black ballpoint pen, use capital letters and place an X in the relevant boxes

Section 1: Who is making this application?

I am making this application as a:

Tenant ☐ Private landlord ☐ Approved housing body ☐

Student-specific accommodation landlord ☐ Cost rental landlord ☐

Representative or agent ☐ Third party / neighbour ☐

Note

You can select landlord or tenant if you are the former landlord or tenant of a tenancy that has ended.

Will you need an interpreter at your dispute hearing?

Yes ☐ No ☐

If yes, what language do you need interpretation in?

Do you have any other special requirements or accessibility requests you would like to share with us?

Yes ☐ No ☐

If yes, please describe:



Section 2: Applicant details

If you are making your own application, fill in your details in this section. If you are an agent or representative, add details for the person or company you are making the application for.

Applicant 1

First name

Surname

If the applicant is a company, please provide the full company name

Current address

Eircode

Telephone

Mobile

Email

Personal Public Service Number (PPSN)
or
Company Registration Office (CRO) number

Applicant 2

First name

Surname

If the applicant is a company, please provide the full company name

Current address

Eircode

Telephone

Mobile

Email

Personal Public Service Number (PPSN)
or
Company Registration Office (CRO) number

Note

If there are more than two applicants for this dispute, please photocopy this page and attach it to the application form.



Section 3: Respondent details

Please provide as much detail as possible on the other party to this dispute. The RTB must have an address and contact details to contact all parties in a dispute case.

First name

Surname

If the respondent is a company, please provide the full company name

Current address

Eircode

Telephone

Mobile

Email

Personal Public Service Number (PPSN)
or
Company Registration Office (CRO) number



Section 4: Agent or representative details

I am completing this application as a:

Letting agent ☐ Solicitor ☐ Other representative ☐

If you selected 'Other representative,' please explain:

First name

Surname

If the representative is a company, please provide the full company name

Current address

Eircode

Telephone

Mobile

Email

Authority to act on behalf of applicant

I confirm that I have the authority to act on behalf of the applicant. I also confirm that my client understands that I am making this application on their behalf.

Note

If you are a representative or agent, you must submit a letter of authority to act on behalf of your client together with this application. ☐

Section 5: Extra information from third parties

If you are making this application as a third party, we will need some extra information.

Under rental law, neighbours or third parties who have an issue with a tenant must first try to resolve the dispute with the landlord. You must tell the landlord about the issues with their tenant and give them a chance to fix them before you take a dispute to the RTB.

If you do not have the contact details for the landlord, the RTB may be able to provide them, once the tenancy is registered.

Please describe all steps that you have taken to resolve this dispute so far. Please include details of contact with the tenant(s) or landlord.

Section 6: Details of the rented dwelling under dispute

What type of tenancy does this dispute relate to?

Private ☐ Approved Housing Body (AHB) ☐

Student specific accommodation (SSA) ☐ Cost rental ☐

Address of rented dwelling

Eircode

Registered Tenancy Number* **RT**

When did the tenancy start? / / DD/MM/YYYY

When did the tenancy end? (if applicable) / / DD/MM/YYYY

Do the landlord and tenant both live in the same property?

Yes ☐ No ☐

Is there a written lease for this tenancy?

Yes ☐ No ☐

Note: If there is a written lease, we recommend that you send a copy of this with your application.

How often is rent paid?

Daily ☐ Weekly ☐ Fortnightly ☐ Monthly ☐ Quarterly ☐ Yearly ☐

Current rent amount €

New rent amount (if sought) €

Deposit paid by tenant (if any) €

***Note**

A landlord can only submit a dispute case for a registered tenancy. If you are a landlord, you must provide a Registered Tenancy Number with this application. If you are a tenant, you can submit an application without a Registered Tenancy Number.

Section 7: Reason(s) for dispute

Please select all reasons that apply to this dispute application and answer the additional questions for each reason.

Reason	Additional questions
☐ **Rent arrears**	**How much are the arrears?** €
☐ **Overholding**	**How long has the tenant been overholding?**
☐ **Rent arrears and overholding**	**How much are the arrears?** € **How long has the tenant been overholding?**
☐ **Deposit retention**	**Deposit paid** € **Deposit retained** €
☐ **Breach of landlord obligations**	**Select obligation landlord has breached:** ☐ Allowing peaceful and exclusive occupation ☐ Completing necessary repairs ☐ Providing suitable bins for waste ☐ Insuring the structure of the property ☐ Not providing their contact details
☐ **Standard and maintenance of dwelling**	☐ **The landlord has not maintained the dwelling standards**

Part 2: Shared with all dispute parties

Reason	Additional questions
☐ **Breach of tenant obligations**	**Select obligation tenant has breached:** ☐ Allowing access for inspection ☐ Following tenancy agreement rules ☐ Engaging in anti-social behaviour ☐ Keeping the property in good condition ☐ Altering property without permission ☐ Assigning / subletting without landlord's permission ☐ Using property for commercial purposes
☐ **Damage in excess of normal wear and tear**	**Has the tenant caused any damage to the property that is not considered normal wear and tear during the tenancy period?** ☐ Yes ☐ No
☐ **Breach of fixed term lease**	**Has the landlord or tenant breached a term within the lease?** ☐ Yes ☐ No
☐ **Validity of Notice of Termination:**	**Reason notice is invalid:** (Select all that apply) ☐ Incorrect template used ☐ Notice not served correctly ☐ Does not provide correct time period to vacate ☐ Incorrect landlord size when notice served
☐ **Unlawful termination of tenancy (illegal eviction)**	**Has the landlord forcibly removed you or blocked you from entering the dwelling?** ☐ Yes ☐ No **Please provide date of incident:** ☐☐ / ☐☐ / ☐☐☐☐

Reason	Additional questions
☐ **Anti-social behaviour**	**Do you have a witness?** ☐ Yes ☐ No **If yes, please provide their contact details:** Name Address Phone Email
☐ **Validity of notice of rent setting**	**Reason notice is invalid: (Select all that apply)** ☐ Incorrect template used ☐ Notice not served correctly ☐ Comparable rents given do not match tenancy **Date notice was served:** ☐☐ / ☐☐ / ☐☐☐☐ **Date notice due to take effect:** ☐☐ / ☐☐ / ☐☐☐☐

Reason	Additional questions
☐ **Validity of notice of rent review**	**Reason notice is invalid: (Select all that apply)** ☐ Incorrect template used ☐ Notice not served correctly ☐ Incorrect notice period for rent increase ☐ Comparable rents given do not match tenancy ☐ New rent is above allowed increase **Date notice was served:** ☐☐ / ☐☐ / ☐☐☐☐ **Date notice due to take effect:** ☐☐ / ☐☐ / ☐☐☐☐
☐ **Giving a false or misleading reason to end the tenancy**	**Why did the landlord end the tenancy?** ☐ Breach of tenant obligations ☐ Property no longer suits tenant needs ☐ To sell property ☐ Substantial refurbishment ☐ Change of use

Section 8: Evidence to support your application

Essential evidence

If you are submitting a dispute for one of the reasons below, you must provide certain documents with this application:

Type of dispute	Document needed	Have you enclosed the document needed?
Rent arrears	Notice of rent arrears	Yes ☐ No ☐ Not applicable ☐
Validity of rent review	Notice of rent review	Yes ☐ No ☐ Not applicable ☐
Validity of notice of termination	Notice of termination	Yes ☐ No ☐ Not applicable ☐

Evidence for mediation and adjudication

Mediation

Mediation is not an evidence-based process. However, either party can choose to submit any supporting documents they feel are relevant to the case. This evidence is not shared with the other party. If the dispute cannot be resolved by mediation and is appealed to a tribunal, the evidence submitted at mediation is shared with everyone involved.

Adjudications and tribunals

Adjudications and tribunals are evidence-based. All parties can submit evidence to support their case. The independent decision-maker assesses the evidence to decide how to resolve the dispute. In an application by a third party, the case is taken against the landlord. The tenants are told about the case and get copies of all the evidence submitted.

You can read our full Guide to Evidence at: www.rtb.ie/disputes/guide-to-evidence.

Types of evidence to submit

You should only submit evidence that supports your case. This can include:

- Emails, letters and text messages between the people in the dispute
- Bank statements
- Utility bills, receipts and invoices
- Photo evidence
- Letting agreements or a copy of the lease
- Witness statements

You cannot submit audio or video evidence before the hearing. But you can let the RTB know in advance that you want to show audio or video evidence during the hearing. The mediator, adjudicator, or Tribunal will then decide at the hearing if the evidence can be shown.

Things to remember when submitting evidence

- When you submit evidence, remember to black out or redact any personal data and confidential information that are not related to the case (for example, bank details).
- If your case goes to an adjudication or tribunal hearing, all evidence that you submit will be shared with all parties to the dispute.
- Do not send us original copies of any documents. It will not be returned.

Section 9: Applicant signature(s)

We need a signature for all applicants to progress your dispute resolution case. Please sign below before you send this form to the RTB.

Signature(s) _____ Date __ __ / __ __ / __ __ __ __
DD/MM/YYYY

Signature(s) _____ Date __ __ / __ __ / __ __ __ __
DD/MM/YYYY

Signature(s) _____ Date __ __ / __ __ / __ __ __ __
DD/MM/YYYY

Signature(s) _____ Date __ __ / __ __ / __ __ __ __
DD/MM/YYYY

Section 10: Returning the application form

Please send a completed copy of this application form and any relevant evidence to:

Dispute Resolution Section
Residential Tenancies Board
PO Box 13841
Freepost
FKY 7736
Killorglin
Co Kerry

How we handle your personal data

The RTB respects your privacy and is committed to complying with Data Protection law. For information on how the RTB handles your personal data, please read the RTB Privacy Statement at https://www.rtb.ie/privacy-statement.

